

Trust not issuing out of the land, but collateral to it. — A trust is “*not issuing out of the land, but as a thing collateral to it.*” A legal charge, as a rent, issues directly out of the land itself, and therefore binds every person, whether in the *per* or *post*, whether a purchaser for valuable consideration or volunteer, whether with notice or without; but a trust is not part of the land, but an incident made to accompany it, and that not inseparably, but during the continuance only of certain indispensable adjuncts; for —

4. Annexed in privity to the estate. — A trust is “*annexed in privity to the estate,*” that is, must stand or fall with the person by whom the trust is created; as, if the trustee be disseised, the tortious fee is adverse to that impressed with the trust, and therefore the equitable owner, until the fusion of law and equity, could not have himself sued the disseisor, but must have brought an action against him at law in the name of the trustee (*d*).

Extent of the term privity to the estate. — During the system of *uses*, and also while *trusts* were in their infancy, the notion of privity of estate was not extended to tenant by the curtesy, or in dower, or by *elegit*, or in fact to any person claiming by operation of law, though through the trustee; but in this respect the landmarks have been carried forward,

and at the present day a trust follows the estate into [*16] the hands of every one **claiming under the trustee*,

whether in the *per* or *post*. It was the opinion of Sir T. Clarke and Lord Northington, that a lord taking by escheat, as claiming by title paramount, and not either in the *per* or *post*, was not affected by any privity, and therefore could not be compelled to execute the trust (*a*). But this question was never actually decided, and has in great measure become immaterial (*b*).

187; S. C. 1 Vern. 412; Tabor v. Grover, 2 Vern. 367; S. C. 1 Eq. Ca. Ab. 328; Clerkson v. Bowyer, 2 Vern. 66; Gobe v. Earl of Carlisle, cited *ib.*; Wood v. Nosworthy, cited Awdley v. Awdley, 2 Vern. 193.

(*d*) Finch's case, 4 Inst. 85, 1st

resolution; and see Gilbert on Uses, edited by Lord St. Leonards, p. 429, note 6. See now 36 & 37 Vic. c. 60, s. 24.

(*a*) Burgess v. Wheate, 1 Eden, 203, 246.

(*b*) See *post*, c. xii. s. 3.

Earle v. Washburn, 7 Allen, 95; Lewis v. Starke, 18 Miss. 120; Sheldon v. Edwards, 35 N. Y. 279.